CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E353E5B7D
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN FULL

From: exchangeinfo@nymex.com <exchangeinfo@nymex.com>
Sent: Mon, 11 Sep 2000 03:50:00 -0700 (PDT)
To: tana.jones@enron.com <tana.jones@enron.com>
Subject: (00-313) POSITION ADJUSTMENT DEADLINES FOR THE OCTOBER 2000 METAL AND ENERGY CONTRACTS

Notice No. 00-313
September 7, 2000

TO:
ALL NYMEX/COMEX DIVISION MEMBERS
ALL MEMBER FIRMS
ALL CLEARING MEMBERS

FROM: NEAL WOLKOFF

RE:
POSITION ADJUSTMENT DEADLINES FOR THE OCTOBER 2000 METAL AND ENERGY CONTRACTS
[NYMEX RULE 9.04(P) AND COMEX RULE 4.37(A)]

As a reminder, position adjustments for both NYMEX and COMEX Division metals contracts are prohibited beginning on the tenth business day prior to the first business day of the delivery month, and throughout the delivery month. Therefore, all position adjustments of concurrent futures positions for the October 2000 metals contracts must be completed prior to September 18, 2000.

Additionally, position adjustments of concurrent futures positions for NYMEX energy contracts are not permitted during the last three trading days of the respective contracts. Rules 9.04(P) and 4.37(A) are below.

If you have any questions concerning this matter, please contact Nick Galati at (212) 299-2920 or Nick Falcone at (212) 299-2919.

NYMEX RULE 9.04 - CLEARING PROCEDURE

(P) Concurrent Futures Positions

(1) Concurrent long and short positions in the current delivery month may not be offset by netting, transfer, expit, adjustment or any other bookkeeping procedures, but each side must be offset by normal floor transactions in accordance with Exchange Rules. Provided, however, that a clearing member will be exempt from this requirement if: (I) one side of the concurrent

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position is established the business day prior to the date that the offset memoranda are filed with the Clearing House; (II) a clearing member filing such offset memoranda can satisfy the Exchange at its request that the delay in effecting the offset is attributed to an error in the filing of its clearing sheets; and (III) by 10:30 a.m. on the same date that a clearing member files such offset memoranda, the clearing member also files with the clearing house an updated and accurate Long Open Interest Report.

(2) For the purposes of this Rule 9.04(P), the current delivery month for energy futures contracts commences on the open of trading on the third business day, prior to termination of the respective futures contract, including the termination date. The current delivery month in platinum and palladium commences on the tenth (10th) business day prior to the first business day of the delivery month.

COMEX RULE 4.37A - CONCURRENT FUTURES POSITIONS

(1) Concurrent long and short positions in the current delivery month may not be offset by netting, transfer, expit, adjustment or any other bookkeeping procedures, but each side must be offset by normal floor transactions in accordance with Exchange Rules. Provided, however, that a clearing member will be exempt from this requirement if one side of the concurrent position is established the business day prior to the date that the open positions are filed with the Clearing House.

(2) For the purposes of this Rule 4.37A, the current delivery month for metals futures contracts commences on the open of trading on the tenth (10th) business day, prior to the first business day of the delivery month.
The current delivery month for Eurotop futures commences on the open of trading on the tenth (10th) business day prior to the termination of the respective futures contract, including the termination date.

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